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## Appeal Decision

Site visit made on 6 August 2026

by **Barry John Lomax MPLAN (Hons) MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

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### Appeal Ref: 6009966

#### **Chedworth, Coopers Hill Road, South Nutfield, Redhill, Surrey RH1 5PD**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
  - The appeal is made by Dave Kemp against the decision of Tandridge District Council.
  - The application Ref is TA/2025/954.
  - The development proposed is the erection of up to 5 dwellings.
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### Decision

1. The appeal is dismissed.

### Procedural Matters

2. The proposal is for permission in principle. The Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second stage (technical details consent) is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development proposed<sup>1</sup>. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.
4. The application is accompanied by a location plan<sup>2</sup>, which adequately identifies the land to which the application relates and therefore satisfies the requirements of Article 5D of the Town and Country Planning (permission in principle) Order 2017 (as amended). The submission also includes 4 site layout plans comprising 2 alternative layouts for a 3-unit scheme and 2 alternative layouts for a 5-unit scheme.
5. Two of those plans, one illustrating a 3-unit layout<sup>3</sup> and one illustrating a 5-unit layout<sup>4</sup>, show development extending beyond the site boundary identified on the location plan. As the location plan defines the extent of the application site, any development shown outside that boundary does not form part of the application before me. Consequently, I have attached no weight to those plans in reaching my

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<sup>1</sup> Paragraph: 012 Reference ID: 58-012-20180615

<sup>2</sup> Drawing Number 0259(00)000

<sup>3</sup> Drawing Number 0259(11)011

<sup>4</sup> Drawing Number 0259(11)012

decision and have considered the application on the basis of the remaining plans only.

6. A previous planning appeal<sup>5</sup> against the refusal of Tandridge District Council (TDC) to grant permission in principle for the erection of 9 dwellings at the appeal site was dismissed on 17 November 2025. I have had regard to the findings of that decision insofar as it relates to the matters before me.
7. On 17 August 2026, a revised National Planning Policy Framework (the 2026 Framework) was published. Annex A makes clear that the policies in the Framework are material considerations which must be taken into account in decision-making from the date of publication. The main parties were given the opportunity to comment on the revised Framework. I have taken any comments received into account in reaching my decision.
8. For clarity, references to the Framework in this decision are to the August 2026 version.

## **Main Issues**

9. The main issues are, with specific regard to location, the proposed land use, and the amount of development:
  - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and any relevant development plan policies, with particular regard to whether the proposal is in a sustainable location;
  - the effect of the proposal on the openness of the Green Belt;
  - the effect of the proposal on the character and appearance of the area; and
  - if the development is inappropriate whether the harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations so as to amount to the very special circumstance necessary to justify the development.

## **Reasons**

*Whether the proposal would constitute inappropriate development in the Green Belt, with particular regard to the sustainability of its location*

10. The appeal site is located within the Green Belt and outside any recognised settlement. Paragraph 10.5 of the supporting text to the Tandridge Local Plan Part 2: Detailed Policies (2014) (the Local Plan) states that the construction of new buildings within the Green Belt constitutes inappropriate development unless it falls within one of the exceptions set out in the National Planning Policy Framework (the Framework). Policy DP10 of the Local Plan states that permission for inappropriate development, which is by definition harmful to the Green Belt, will normally be refused unless there are considerations that clearly outweigh the harm to the Green Belt arising from its inappropriateness, together with any other harm, so as to amount to very special circumstances (VSCs).
11. Policy DP13 of the Local Plan sets out a list of exceptions to the general presumption against development in the Green Belt. Paragraph 10.6 of the

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<sup>5</sup> APP/M3645/W/25/3371822

supporting text to the Local Plan confirms that the policy was drafted to replicate the exceptions then found at paragraph 89 of the 2012 Framework. In this respect, the policy is now inconsistent with current national policy. The revised Framework has, in part, widened the range of exceptions and, in some cases, amended the wording of those exceptions.

12. In relation to the appeal proposal, the relevant differences concern the redevelopment of previously developed land within the Green Belt, and the provision of housing on grey belt land within the Green Belt. Given the inconsistency between Policy DP13 and the Framework, I have applied the relevant exceptions as set out in the Framework.
13. The Planning Statement submitted with the application refers to the exception at paragraph 154(g) of the 2024 Framework, the limited infilling, or partial or complete redevelopment, of previously developed land (PDL). This has now been replaced by policy GB7 of the Framework. However, that case is not pursued in the appellant's Appeal Statement. In any event, the evidence before me does not demonstrate that the appeal site comprises PDL. The application form describes the site as a paddock and there is no substantive evidence that it was previously occupied by a permanent structure or by any fixed surface infrastructure. Furthermore, no such features were apparent during my site visit. Consequently, the site does not comprise PDL for the purposes of the Framework and the exception in policy GB7 1(e) is not satisfied.
14. Policy GB7 1(g) of the Framework states that the development should not be regarded as inappropriate in the Green Belt where all of a number of criteria apply. I shall deal with those relevant to this case.
15. It is common ground between the main parties that the site comprises grey belt land. I agree with that position.
16. It is common ground between the main parties that the development of the land would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan. I agree with that position. Consequently, criterion i) of policy GB7 1(g) of the Framework is satisfied.
17. It is also common ground that the Council is unable to demonstrate a 5-year supply of deliverable housing land and that there is therefore an unmet need for additional housing. Consequently, criterion ii) of policy GB7 1(g) of the Framework is satisfied.
18. Criterion iii) of policy GB7 1(g) of the Framework requires development to be in a sustainable location, with particular regard to policy TR3 of the Framework.
19. The appellant contends that the site is sustainably located and has referred to a number of recent permissions and decisions<sup>6</sup> in support of that position. However, those permissions and decisions relate to different sites with differing locational characteristics, development proposals and planning circumstances. Moreover, limited information has been provided regarding the particular considerations that led to those decisions and, in any event, planning applications must be determined on their individual merits. Consequently, I attach limited weight to those permissions.

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<sup>6</sup> Application Reference 2025/499, 2018/1996, APP/M3645/W/24/3352066, APP/M3645/W/25/3366613, APP/M3645/W/25/3372745, APP/M3645/W/24/3347328, and APP/M3645/W/24/3347815

20. The Council has provided details of 2 recent appeal decisions<sup>7</sup> in support of its position, including a dismissed appeal<sup>8</sup> concerning the refusal to grant permission in principle for 9 dwellings on the appeal site. Only limited information has been provided regarding the circumstances and considerations that informed those decisions. Consequently, I attach limited weight to the appeal decision relating to the different site, and I have had regard to the decision concerning the appeal site insofar as its findings are relevant to the matters before me.
21. The appeal site lies outside any defined settlement boundary, the nearest being South Nutfield. The edge of the settlement is approximately 800m from the site, with the first services and facilities located a similar distance beyond. From my site visit, I observed that accessing these facilities would involve a relatively long walk or cycle. Access between the site and South Nutfield would primarily be via country roads, notably Coopers Hill Road and Kings Cross Lane. These roads are subject to speed limits of 40mph and 30mph respectively and lack continuous footways and street lighting. As a result, pedestrians and cyclists would be required to share the carriageway with vehicular traffic for much of the journey. Collectively, these factors would materially diminish the attractiveness of walking and cycling as realistic alternatives to the private car for accessing day-to-day services and facilities.
22. The appellant has provided information regarding a hail-and-ride bus service; however, limited evidence has been submitted concerning the frequency, hours of operation, all destinations served, or reliability of that service. In the absence of such information, I cannot be satisfied that it would provide a convenient and attractive alternative to the private car for day-to-day journeys.
23. Overall, these factors would materially reduce the attractiveness of walking, cycling and public transport as realistic alternatives to the private car for day-to-day journeys.
24. In dismissing the previous appeal on this site, the Inspector concluded that the proposal would not be in a suitable location.
25. Having regard to the evidence before me, including the matters advanced by the appellant, and the revised Framework, I find no material circumstances that would justify reaching a different conclusion from that of the previous Inspector in respect of the sustainability of the site. Consistency in decision-making is an important principle and, in the absence of any material change in circumstances, or compelling new evidence, I see no sound basis for departing from that earlier conclusion. In particular, there is no evidence before me to indicate that the accessibility of the site, the surrounding highway network, the opportunities for active travel, or the availability of public transport have materially changed since the previous decision. While each appeal must be determined on its own merits, the circumstances of the previous appeal are materially similar and I therefore attach significant weight to that decision.
26. Reference is made to planning permission 2018/1996 at Chedworth, which allowed the change of use of a storage building to a bungalow. Limited information has been provided regarding the particular considerations that led to that decision.

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<sup>7</sup> APP/M3645/W/25/3364704, APP/M3645/W/25/3371822

<sup>8</sup> APP/M3645/W/25/3371822

In any event, planning applications must be determined on their individual merits. Consequently, I attach limited weight to that permission.

27. In relation to Policy TR3 of the Framework, the proposal would provide up to 5 dwellings and, as such, would be expected to generate only a modest level of movement. Accordingly, the proposal does not engage criterion (a) of the policy to the same degree as a larger-scale development that would give rise to significant travel demand. Nevertheless, Policy TR3 must be read as a whole. In this regard, the proposal would not promote sustainable patterns of movement, would fail to limit the need to travel, particularly by private car, and would not provide future occupants with a genuine choice of transport modes. Whilst some reliance on the private car is to be expected in a rural location, the particular circumstances of the appeal site would result in that reliance being especially pronounced. Taking these matters together, I conclude that the proposal conflicts with Policy TR3 of the Framework when read as a whole.
28. In light of the above and taking account of the limitations of the routes linking the site to local services and facilities, the absence of attractive opportunities for walking, cycling and public transport use, and the consequent reliance upon the private motor vehicle, I conclude that the proposal would not support sustainable patterns of movement, and would not therefore be in a sustainable location. Accordingly, criterion iii) of policy GB7 1(g) of the 2026 Framework is not satisfied.
29. As criterion iii) is not satisfied, the proposal does not benefit from the exception provided by policy GB7 1(g).
30. Consequently, the proposal amounts to inappropriate development in the Green Belt. In accordance with Policy DP10 of the Local Plan and policy GB6 of the Framework, inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
31. In addition, the site is located in an unsustainable location and would be contrary to Policy DP5 of the Local Plan, which, insofar as relevant, seeks to ensure that development promotes access by public transport, foot and bicycle to nearby residential, commercial, retail, educational, leisure and recreational destinations.
32. The Local Plan is consistent with the policies in the Framework with regard to Green Belt development and locating development in sustainable locations.

#### *Effect on openness and purposes*

33. The site currently comprises an undeveloped paddock and, in spatial terms, the proposed land use and quantum of development would materially reduce its openness. In visual terms, although views of the site from Coopers Hill Road are largely screened by a mature tree belt, the site remains visible from the motorway, albeit in limited views and with some screening provided by a timber fence. Nevertheless, the proposed land use and quantum of development on this currently undeveloped site would erode its open and spacious character. Taking these factors together, I conclude that the proposal would result in significant harm to the openness of the Green Belt. Furthermore, by introducing residential development onto an undeveloped paddock, the proposal would conflict with the Green Belt purpose of safeguarding the countryside from encroachment.

### *Character and appearance*

34. In the context of this appeal for permission in principle, consideration of character and appearance is necessarily limited to the proposed land use and amount of development. Matters relating to detailed layout, scale, appearance and landscaping would fall to be considered at the technical details consent stage. My assessment therefore relates only to the effects arising from the introduction of up to 5 dwellings as a land use on this site.
35. The appeal site comprises an undeveloped and open parcel of land currently used as a paddock. It adjoins existing built development to the south. A mature tree belt defines the eastern boundary of the wider site. The site makes a positive contribution to the area's open and spacious character and appearance. Its undeveloped nature reinforces the rural qualities of the locality and helps to soften the visual influence of the motorway, contributing to a gradual transition between the transport corridor and the surrounding countryside.
36. Notwithstanding the absence of detailed design information, the introduction of residential development comprising up to 5 dwellings on this currently undeveloped paddock would, by reason of the proposed land use and amount of development, introduce a domestic and urbanising influence into an otherwise rural location. I therefore find that the proposal would fail to conserve the existing rural character of the site and its immediate surroundings.
37. Accordingly, the proposal would be contrary to Policy DP7 of the Local Plan and Policy CSP18 of the Tandridge District Core Strategy 2008 (the Core Strategy). Those policies, in so far as relevant, require development to integrate effectively with its surroundings to reinforce local distinctiveness and landscape character.
38. The Local Plan and the Core Strategy are consistent with the policies in the Framework with regard to character and appearance matters.

### *Other considerations*

39. The proposal would deliver up to 5 dwellings. This would support the Government's objective of significantly boosting the supply of homes and, in the context of the Council's significant housing land supply shortfall, would make a small but meaningful contribution towards meeting housing need. I therefore attach substantial weight to this benefit.
40. It would also give rise to economic benefits during both the construction and occupation phases, which attract moderate weight. I further recognise the economic benefits found in the support for small and medium-sized enterprises through the delivery of small sites; this is a benefit to which I attach moderate weight.

### **Other Matters**

41. I have had regard to the representations concerning highway safety, particularly in relation to the provision of visibility splays. However, no substantive evidence has been provided to demonstrate that the required visibility splays could not be achieved. Accordingly, had I been minded to allow the appeal, this matter could appropriately be addressed through the technical details consent process.

42. I have also had regard to the representation concerning the potential effects of the proposed residential development on a neighbouring business. However, no substantive evidence has been provided to demonstrate that the development would or could result in unreasonable restrictions on, or otherwise prejudice, the operation of that business. In the absence of such evidence, I afford this consideration limited weight in my assessment.
43. I have also had regard to the appellant's submission in respect of the consultation response submitted by the County Highway Authority (CHA) in response to the proposal, particularly the contention that the CHA exceeded its powers in providing comments of that nature. I afford this argument little weight. There is no substantive evidence before me to indicate that the CHA was constrained from commenting on the matters raised within its consultation response. In any event, and notwithstanding the appellant's concerns, I have concluded, on the basis of the evidence before me, that the proposal would not occupy a sustainable location irrespective of the CHA's consultation response. The consultation response has merely reinforced and substantiated that conclusion.

### **Green Belt conclusion**

44. The proposal represents inappropriate development which, by definition, is harmful to the Green Belt and attracts substantial weight. In addition, the proposal would result in a substantial reduction in openness and conflict with the Green Belt purpose of safeguarding the countryside from encroachment. These harms attract substantial weight. Separately, I have found that the introduction of residential development on the site would harm the character and appearance of the area through the urbanising influence associated with the proposed land use and amount of development. This is a distinct planning harm to which I attach significant weight. In addition, the location of the proposed development would not be suitable and would result in unsustainable patterns of travel, a consideration of significant weight.
45. While the identified housing benefits carry substantial weight and the economic benefits carry moderate weight, they are insufficient to clearly outweigh the Green Belt, openness, sustainability and character harms.
46. As such, the proposal would constitute inappropriate development in the Green Belt and there are no considerations taken individually or in combination that would clearly outweigh that harm to the Green Belt and any other harm so as to amount to very special circumstances.
47. Accordingly, the proposal conflicts with Policies DP10 and DP13 of the Local Plan and with the Framework which, insofar as relevant, states that inappropriate development in the Green Belt should not be approved except in very special circumstances. This is consistent with policies in the Framework.
48. The Council has referred to Policy DP14 of the Local Plan. However, having regard to the wording of the policy and its supporting text, I find that it is directed towards proposals for garages and other ancillary domestic buildings associated with existing dwellings within the Green Belt. The appeal before me concerns permission in principle for new residential development and not the erection of ancillary structures serving an existing dwelling. In these circumstances, I conclude that Policy DP14 is not directly applicable to the proposal and therefore carries very limited weight in the determination of the appeal.

## Planning Balance

49. Policy S3 of the 2026 Framework states that decisions on development proposals should apply the presumption in favour of sustainable development. In relation to the appeal before me this means policy S5 of the 2026 Framework should be applied.
50. Policy S5 states that development proposals outside of settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. However, paragraph 5 of the policy makes clear that the policy does not apply to development proposals in the Green Belt, which should instead be determined in accordance with policy GB7. The policy further confirms that, where development would not be inappropriate in the Green Belt following the application of policy GB7, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse impacts. For the reasons set out above, the proposal would amount to inappropriate development in the Green Belt for the purposes of policy GB7. Consequently, the proposal does not benefit from the presumption in favour of sustainable development.

## Conclusion

51. Drawing all matters together, the proposal would be contrary to the development plan when taken as a whole, and no other material considerations, including the Framework indicate that a decision should be made other than in accordance with it.
52. For the reasons given, the appeal is dismissed.

*Barry John Lomax*

INSPECTOR